

**Superior Court of the State of California
County of Orange**

DEPT C20 TENTATIVE RULINGS

Judge Theodore Howard

The court will hear oral argument on all matters at the time noticed for the hearing. If you would prefer to submit the matter on your papers without oral argument, please advise the clerk by calling (657) 622-5220. If no appearance is made by either party, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 4:00 p.m. on the day before the hearing.

COURT REPORTERS WILL NO LONGER BE PROVIDED FOR TRIAL AND OTHER HEARINGS WHERE LIVE EVIDENCE WILL BE PRESENTED. IF A PARTY DESIRES A COURT REPORTER FOR ANY HEARING INCLUDING, BUT NOT LIMITED TO, LAW AND MOTION MATTERS, EX PARTE MATTERS AND CASE MANAGEMENT CONFERENCES, IT WILL BE THE RESPONSIBILITY OF THAT PARTY TO PROVIDE ITS OWN COURT REPORTER. PARTIES MUST COMPLY WITH THE COURT'S POLICY ON THE USE OF PRO TEMPORE COURT REPORTERS WHICH CAN BE FOUND ON THE COURT'S WEBSITE AT:

[http://www.occourts.org/media/pdf/7-25-2014 Privately Retained Court Reporter Policy.pdf](http://www.occourts.org/media/pdf/7-25-2014%20Privately%20Retained%20Court%20Reporter%20Policy.pdf)

The Orange County Superior Court has implemented administrative orders, policies, and procedures noted on the Court's website to address the limitations and restrictions presented during the COVID-19 pandemic at Civil Covid-19. Due to the fluid nature of this crisis, you are encouraged to frequently check the Court's website at <https://www.occourts.org> for the most up to date information relating to Civil Operations.

Unless otherwise ordered by the Court, all Unlimited and Complex proceedings may be conducted via Zoom or in person. On the date of your hearing click the Department C20 Link to begin the remote online check in/Zoom appearance process:

<https://occourtsapp.occourts.org/aci/checkin-results?dept=C20>

Date: August 20, 2026

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1.	Woods v. General Motors, LLC 24-1427229	The motion for attorneys' fees filed by plaintiff Scott Henry Woods (Plaintiff) against defendant General Motors, LLC (Defendant) is GRANTED IN PART to award Plaintiff \$42,125.00 in attorneys' fees. A court assessing a claim for fees under <i>Civil Code section 1794, subdivision (d)</i> is to use the lodestar as the start, to assess the reasonableness of the fee claim. (<i>Mikhaeilpoor v. BMW of North</i>

		<i>America</i> (2020) 48 Cal.App.5th 240, 246-247.) The party claiming fees has the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and reasonable in amount. (<i>Ibid</i>; <i>Levy v. Toyota Motor Sales, U.S.A., Inc.</i> (1992) 4 Cal.App.4th 807, 816.) "In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (<i>Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.</i> (2008) 163 Cal.App.4th 550, 564.) With regard to the determination of a reasonable hourly rate, the court may rely on its own knowledge and familiarity with the legal market as well as the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation to which that skill was applied, and declarations from other attorneys regarding prevailing fees in the community and rate determinations in other cases. (<i>Morris v. Hyundai Motor America</i> (2019) 41 Cal.App.5th 24, 41.) The Court finds the hourly rates requested adequately supported and reasonable given counsels' experience and the nature of the dispute. (See Wirtz Decl., ¶¶ 4-11, 17-26 and Exs. 2-4; see also, <i>Baer v. Tedder</i> (2025) 115 Cal.App.5th 1139, 1160-1161.) Defendant argues the hourly rates are unreasonable. However, Defendant failed to present any evidence to rebut the hourly rates requested. The Court finds the requested multiplier not justified on the record presented and thus the request for a multiplier is DENIED The Court has reviewed the billing records submitted by Plaintiff's counsel and determines the fees claimed are reasonable in light of the circumstances of this case. While the total amount of fees sought is substantial, the amount of time incurred is supported by counsel's declaration and the detailed billing records. Defendant failed to show any specific billing entries should be reduced as excessive or unreasonable. Based on the foregoing, the motion is GRANTED IN PART to award Plaintiff total attorney's fees against Defendant in the sum of \$42,125.00. Plaintiff's evidentiary objections are OVERRULED. <i>Counsel for Plaintiff is ordered to give notice of this ruling.</i>
2.	MedLab2020, Inc. v. UHC of California	Before the Court is the unopposed application of attorney Robert Keefe to appear in this matter pro hac vice as counsel for defendants.